MASIMBA HOLDINGS
versus
RUESON INVESTMENTS PRIVATE LIMITED

HIGH COURT OF ZIMBABWE
MUNGWARI J
HARARE; 25 February 2026

Opposed Application

E Mangezi, for the applicant
J Chikura, for the respondent

MUNGWARI J:

Introduction

[1] This is an application for registration of an arbitral award in terms of Article 35 of the United Nations Commission on International Trade Law [UNCITRAL] Model Law, an annexure to our Arbitration Act [*Chapter 7:15*] ["***the Model Law***"].

Background

[2] The applicant and respondent are duly registered companies in terms of the laws of Zimbabwe. Sometime in the year 2024 they entered into an agreement for the sale of various items. It was a term of the agreement that the resolution of any dispute that would arise from their agreement would be resolved through arbitration. A dispute subsequently arose between the parties concerning payment of the purchase price and performance under the agreement. The applicant alleged that the respondent had failed to comply with its contractual obligations while the respondent disputed liability. Pursuant to the arbitration clause the matter was referred for arbitration before a duly appointed arbitrator. Both parties participated in the proceedings, filed pleadings and presented their respective cases. After considering the evidence and submissions the arbitrator rendered a written award dated 30 July 2025 ordering the respondent to pay to the applicant the sum of US$264 400.00.

[3] Although the award was rendered on the indicated date, it was not immediately released to the parties because they had not settled the arbitration fees at that time. As a result, the arbitrator withheld handing down the award pending payment of those fees. In its endeavour to have the result of the arbitration released, the applicant ultimately paid not only its portion of the fees but also that of the respondent. Thereafter, the award was delivered to the parties on 10 October 2025.

[4] Upon reviewing the award, the applicant noted a typographical inconsistency in the reasons section. The inconsistency had no effect on the operative part of the order. It however created ambiguity within the narrative portion. The applicant thought it prudent to address a written request to the arbitrator seeking a correction of the offending portion in terms of Article 33(1) (a) of the Model Law. On his part, the arbitrator issued an erratum on 31 October 2025 confirming that the operative portion of the award remained unchanged.

[5] The applicant has now approached this court, seeking the registration of the arbitral award in terms of Article 35 of the Model Law (1st schedule to the Arbitration Act [*Chapter 7:15*]. It contends that it is just and equitable that the award issued by the arbitrator be registered as an order of this court for purposes of enforcement. The applicant's argument is that the requirements for the registration of the award which are outlined in Article 35(2) of the Model Law have been complied with.

[6] The Respondent opposes the application on the basis that the correction of the arbitral award dated 31 October 2025, which the applicant seeks to register, is a nullity as it was issued outside the statutory 30-day period prescribed in Article 33(1) of the Model Law. It further contends that "receipt" of the award occurred when the parties were notified of its availability for collection, and not when the applicant physically collected the award. On this interpretation, the respondent argues that the arbitrator had become *functus officio* at the time the correction was made and that the corrected award is therefore a nullity incapable of registration.

[7] In its answering affidavit, the applicant disputes this contention and argues that receipt of the award occurred only upon physical delivery on 10 October 2025, after the applicant had paid the outstanding arbitration fees, including the respondent's unpaid portion, which had delayed the release of the award. The applicant submits that the request for

correction was therefore made within the permissible period and that the arbitrator retained jurisdiction to issue the correction. The applicant further submits that Article 31(4) of the Model Law requires delivery of a signed copy of the award and that the thirty-day period under Article 33 begins to run upon actual delivery, not mere notification. Applicant further contends that the arbitrator did not become *functus officio* prior to issuing the correction, and therefore the award was valid and registrable.

The Dispute

[8] The dispute therefore turns on the proper interpretation of the concept of "receipt" under Article 33(1) of the Model Law, the effect of non-payment of arbitration fees on the running of statutory time limits, and whether the arbitrator retained jurisdiction to issue the correction. This Court is therefore called upon to determine whether the corrected arbitral award is valid and capable of registration, and whether the Respondent's opposition has merit.

The Applicable Law

[9] The legal framework governing this application is the UNCITRAL Model Law on International Commercial Arbitration as incorporated into the Arbitration Act [*Chapter 7:15*]. The relevant provisions are Articles 3, 31(4), 33(1), and 35, which together regulate delivery of awards, receipt of communications, correction of awards, and enforcement.

Article 3(1) of the Model Law provides that

> (1) Unless otherwise agreed by the parties—
>
> > (a) **any written communication is deemed to have been received if it is delivered to the address personally or if it is delivered at his place of business, habitual residence or mailing address**; if none of these can be found after making a reasonable inquiry, a written communication is deemed to have been received if it is sent to the addressee's last known place of business, habitual residence or mailing address by registered letter or any other means which provides a record of the attempt to deliver it;
> > (b) the communication is deemed to have been received on the day it is so delivered. (*underlining for emphasis*).

This article establishes the principles governing when communications are deemed received. It provides that a written communication is deemed received when it is

delivered to the addressee at their place of business, habitual residence, or mailing address. The rationale for this is easy to understand. It is meant to promote certainty in arbitral proceedings by providing a clear rule as to when time begins to run. It recognises that arbitral processes depend upon effective communication between the tribunal and the parties and seeks to avoid disputes about notice.

[10] However, Article 3 must be interpreted contextually together with other provisions of the Model Law, particularly Article 31(4), which specifically regulates delivery of awards. It does not contemplate a purely constructive notion of receipt where the award has not been made available to the party in a usable form.

Article 31(4) requires that after an award is made;

> "After the award is made, a copy signed by the arbitrators in accordance with paragraph (1) of this **article shall be delivered to each party**." (*underlining for emphasis)*

Article 33(1) (a) then goes on to state that;

> 1) Within thirty days of receipt of the award, unless another period of time has been agreed upon by the
> parties—
> (a) a party, with notice to the other party, may request the arbitral tribunal to correct in the award any errors in computation, any clerical or typographical errors or any errors of similar nature;

[11] The meaning of receipt under the Model Law was authoritatively considered by the Supreme Court in *Peruke Investments (Pvt) Ltd* v *Willoughby's Investments (Pvt) Ltd & Anor* SC 11/15, where the Court stated that:

> "The **operative date for the running of time is the date on which the award is delivered to the parties.** Mere notification that the award is available does not constitute receipt within the meaning of the Model Law*."* (*underlining for emphasis).*

[12] The Court emphasised that delivery of the award is a substantive procedural requirement and that parties cannot be deemed to have received an award before a signed copy is placed in their possession.

[13] Article 33(1) provides that within thirty days of receipt of the award, a party may request the arbitral tribunal to correct clerical, typographical, or computational errors. Article 33(1) of the Model Law permits a request for correction within thirty days of receipt of the award. The meaning of receipt must be interpreted in a manner consistent with the objectives of certainty, fairness, and finality in arbitration.

[14] In *Alliance Insurance* v *Imperial Plastics (Private) Limited & Anor* SC 30/17 p.8, an arbitrator, made an error, which error was conceded by the respondent, in awarding US$188 815.90 instead of US$184 815.90. The court ruled that the error should not have the effect of setting aside the arbitral award. The court went on further to outline and confirm the procedure in Article 33(1)(a) of the Arbitration Act as being the recourse where an error is made in the arbitral award. It reiterated that it is not for the courts to set aside the award based on an error that can be corrected in terms of the Act.

[15] The broader policy of minimal judicial interference with arbitration was articulated by the Supreme Court in *Zimbabwe Electricity Supply Authority* v *Maposa 1999 (2) ZLR 452 (S)*, where the Court observed that:

> "Courts should be slow to interfere with arbitral awards. Arbitration is meant to provide finality to disputes and the grounds upon which a court may intervene must be narrowly construed."

This approach reflects the philosophy underlying the Model Law which seeks to preserve the autonomy and finality of arbitral proceedings

[16] Articles 3, 31(4), and 33(1) must be read together as forming a coherent procedural scheme governing delivery, receipt, and correction of awards. Article 35 then provides the enforcement mechanism once the validity of the award is established. The scheme reflects the core principles of arbitration law, namely finality, fairness, party autonomy, and minimal court intervention.

Application of the Law to the Facts

[17] Having set out the applicable statutory framework and the relevant principles derived from case law, the Court now turns to apply the law to the facts of the present matter.

Whether Receipt Occurred Upon Notification or Physical Delivery

[18] The Respondent contends that receipt of the award occurred when the parties were notified that the award was available for collection following its issuance on 30 July 2025. On this interpretation, the thirty-day period under Article 33(1) would have expired well before the request for correction was made. However, this argument fails to take into account the requirement under Article 31(4) that a signed copy of the award must be delivered to each party, as well as the jurisprudence emphasising actual receipt as the operative trigger for procedural time limits. The evidence before the Court establishes that although the award was rendered on 30 July 2025, it was not released due to

outstanding arbitration fees. The arbitrator exercised a lien over the award pending payment of those fees. The Applicant only obtained physical possession of the award on 10 October 2025 after settling the outstanding balance. In these circumstances, it cannot reasonably be said that the Applicant had received the award prior to that date. The Applicant was not in a position to access, examine, or act upon the award until it was delivered. This conclusion accords with the purposive interpretation of Articles 3 and 31(4) and with the principle that procedural time limits should run from the point at which a party is placed in a position to meaningfully exercise its rights. The Court therefore finds that receipt occurred on 10 October 2025.

[19] Having determined that receipt occurred on 10 October 2025, the Court must consider whether the request for correction fell within the thirty-day period prescribed by Article 33(1). The evidence before this court shows that the Applicant requested the correction shortly after upliftment of the award, and the arbitrator issued the corrected award on 31 October 2025. This falls well within the 30-day statutory period. The correction related to a typographical error concerning the amount stated in the body of the award and did not alter the operative portion of the award. Accordingly, the correction falls squarely within the scope of Article 33(1), which preserves the tribunal's jurisdiction to correct clerical or computational errors.

Whether the Arbitrator Was Functus Officio

[20] The Respondent argues that the arbitrator became *functus officio* upon rendering the award on 30 July 2025 and therefore lacked jurisdiction to issue the correction. This argument overlooks the statutory exception contained in Article 33, which expressly preserves the tribunal's authority to correct errors within the prescribed period. Since the request for correction was made within thirty days of receipt, the arbitrator retained jurisdiction to issue the correction. The doctrine of *functus officio* must therefore be read subject to the statutory framework. The Court finds that the arbitrator acted within his residual powers. The correction was therefore valid and cannot be deemed a nullity.

[21] The Respondent sought to attribute the delay in upliftment to the Applicant. The evidence, however, shows that the award was withheld due to outstanding fees and that the Applicant ultimately paid the balance in order to secure release of the award. In light of the principle that a party cannot benefit from its own default, the Respondent cannot

rely on the delay to defeat the Applicant's statutory rights. The delay does not affect the calculation of the statutory period.

Whether the Award Is Capable of Registration

[22] Article 35 establishes a pro-enforcement regime requiring courts to recognise arbitral awards unless specific grounds for refusal are established. The Respondent has failed to establish any recognised ground for refusal. The correction was made within jurisdiction and does not affect the validity of the award. The Court therefore finds that the award is valid and capable of registration.

[23] Article 35(2) of the Model Law goes further and lays the requirements for such an application to be granted. These have been complied with. The arbitral award giving rise to this application, the authentication certificate as well as a duly certified copy of the original agreement have all been attached to the application ensuring compliance thereto.

Conclusion

[24] In conclusion therefore, the respondent's opposition is without merit. It is baseless. Receipt of an arbitral award occurs upon delivery as defined in Article 3(1) and the thirty-day period under Article 33 only begins to run upon such receipt. The correction made on the arbitral award in this matter was sought within the prescribed period following delivery of the award and was therefore valid. There being no ground under Article 36 to refuse recognition or enforcement, the arbitral award is binding and enforceable.

Costs

[25] The general rule is that costs follow the cause. If a party is successful then that party is entitled to their costs. The applicant in this case has been successful. In the absence of any proper justification by the applicant for costs on a higher scale, there is no reason to depart from the rule. The applicant should therefore be awarded costs.

Disposition

[26] Accordingly, the application is granted on the following terms:

a. The arbitral award issued by arbitrator Advocate Thembinkosi Magwaliba on 30 July 2025 be and is hereby registered as an order of this court for purposes of execution.
b. The Respondent be and is hereby ordered to pay the sum of US$264,400.00 to the Applicant.

c. The respondent shall pay the applicant's costs of suit

MUNGWARI J:.....

Mangezi, Nleya and Partners, applicant's legal practitioners
Hatinahama and Associates, respondent's legal practitioners